

Preliminary Development Feasibility Report

Generated: 2026-08-08 | Status: validated

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Project and Site Description

- Address: 5508 Merrywing Circle, Austin, TX
- Proposed land use: Commercial retail
- Development description: Proposed single-story retail building with associated parking.
- Units: None
- Site area (acres): 1.2
- Reported zoning: None (status: multiple_records)
- Floodplain intersection: False
- Watershed: Panther Hollow

Synthesis

Based on the provided site data and regulatory evidence, here is a summary of major feasibility considerations, constraints, unknowns, and recommended next steps:

****Major Feasibility Considerations:****

1. Zoning: The property is zoned as DR (Development Reserve) and I-RR (Rural Residence), which may create conflicts in terms of land use and development.
2. Floodplain: The site does not intersect with the floodplain, but there are nearby properties that have experienced flooding issues.
3. Watershed: The site is located within the Panther Hollow watershed, which receives water from Lake Austin.
4. Transportation: There are no specific transportation requirements mentioned in the provided data, but it's essential to consider the impact of the development on local traffic and access.

****Constraints:****

1. Zoning conflicts
2. Floodplain proximity (although not intersecting)
3. Watershed limitations (Lake Austin water quality concerns)

****Unknowns:****

1. Utility capacity (water, wastewater, electricity) availability and costs
2. Transportation impact analysis (traffic, parking, access)
3. Potential environmental impacts (e.g., stormwater runoff, air quality)

****Recommended Next Steps:****

1. Verify zoning designations and ensure compliance with land use regulations.
2. Conduct a floodplain analysis to determine the potential risks and mitigation strategies.
3. Engage with local authorities to discuss transportation impact analysis and potential solutions.
4. Research utility capacity and costs to determine feasibility and budget for water, wastewater, and electricity services.
5. Consult with environmental experts to assess potential environmental impacts and develop mitigation strategies.

Please note that this summary is based on the provided data and may not be comprehensive or up-to-date. Further research and analysis are necessary to fully understand the feasibility of the proposed development.

Sources Consulted

- | | | | | | | | |
|--|-----------------|----------------|-------------|----------|-------|------|---|
| - | **Austin | Land | Development | Code, | Title | 25** | - |
| https://library.municode.com/tx/austin/codes/land_development_code | | | | | | | |
| - Limitation: Snapshot export; ordinances adopted after the export date are not reflected. | | | | | | | |
| - **Austin Drainage Criteria Manual** - https://library.municode.com/tx/austin/codes/drainage_criteria_manual | | | | | | | |
| - Limitation: Partial manual; other DCM sections are out of scope for this system. | | | | | | | |
| - | **Austin | Transportation | Criteria | Manual** | | | - |

https://library.municode.com/tx/austin/codes/transportation_criteria_manual

- Limitation: Partial manual; other TCM sections are out of scope for this system.
- ****Zoning by Address**** - <https://data.austintexas.gov/> (search: Zoning by Address)
- Limitation: Preliminary reported zoning only; not an official zoning determination. No coordinates; matching is by address string.

- ****Issued Construction Permits**** -

<https://data.austintexas.gov/Building-and-Development/Issued-Construction-Permits/3syk-w9eu>

- Limitation: Issued permits 2021+ only. Historical proximity context; not approval precedent.
- ****Site Plan Cases**** - <https://data.austintexas.gov/> (search: Site Plan Cases)
- Limitation: Some records lack coordinates. Applicant/owner contact fields removed during preprocessing (privacy).
- ****Plan Review Cases**** - <https://data.austintexas.gov/> (search: Plan Review Cases)
- Limitation: Contains VOID/test records (retained but flagged exclude_from_search). Contact fields removed (privacy).
- ****Watershed Boundaries**** - <https://data.austintexas.gov/> (search: Watershed Boundaries)
- Limitation: 76 named watersheds within the Austin planning area.
- ****Greater Austin Fully Developed Floodplain**** - <https://data.austintexas.gov/> (search: Greater Austin Fully Developed Floodplain)
- Limitation: City of Austin fully developed floodplain model (Atlas 14); not the FEMA effective floodplain. Preliminary screening only.

Zoning and Land-Use Context

Retrieved regulatory references:

- LDC Section 2.4 TIER TWO REQUIREMENTS
- LDC Section 25-2-518 QUALIFYING DEVELOPMENT
- LDC Section 2.4 TIER TWO REQUIREMENTS
- LDC Section 25-2-818 MOBILE RETAIL ESTABLISHMENTS
- LDC Section 25-2-91 PURPOSES OF COMMERCIAL DISTRICTS DESIGNATIONS

Site-Plan Considerations

Site-plan applicability depends on proposed use, zoning, and project characteristics; confirm with Development Services.

Retrieved regulatory references:

- LDC Section 2.4 TIER TWO REQUIREMENTS
- LDC Section 25-2-518 QUALIFYING DEVELOPMENT
- LDC Section 2.4 TIER TWO REQUIREMENTS
- LDC Section 25-2-818 MOBILE RETAIL ESTABLISHMENTS
- LDC Section 25-2-91 PURPOSES OF COMMERCIAL DISTRICTS DESIGNATIONS

Drainage, Flood, and Environmental Considerations

Retrieved regulatory references:

- LDC Section 25-7-94 REQUIREMENTS IN CENTRAL BUSINESS AREA
- LDC Section 25-7-92 ENCROACHMENT ON FLOODPLAIN PROHIBITED
- LDC Section 25-7-66 SUPPLEMENTAL REQUIREMENTS FOR DEVELOPMENT APPLICATIONS IN CERTAIN PLANNING AREAS
- LDC Section 25-7-93 GENERAL EXCEPTIONS
- LDC Section 25-7-61 CRITERIA FOR APPROVAL OF DEVELOPMENT APPLICATIONS

Transportation and Access Considerations

Retrieved regulatory references:

- LDC Section 25-6-472 PARKING FACILITY STANDARDS
- TCM Section 10.3.5.2 Parking (Vehicle) Measures
- TCM Section 9.4.1 OFF-STREET GENERAL LOADING REQUIREMENTS
- TCM Section 9.3.2 GENERAL DESIGN CRITERIA
- LDC Section 25-6-1 DEFINITIONS

General Water and Wastewater Considerations

Regulatory requirements do not establish actual water or wastewater service availability or capacity. Verification with the appropriate utility authority is required.

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Retrieved regulatory references:

- LDC Section 25-9-33 SERVICE EXTENSION APPLICATION
- LDC Section 25-9-383 AVAILABILITY OF RECLAIMED WATER SERVICE
- LDC Section 25-9-410 APPLICABILITY
- LDC Section 25-9-31 APPLICABILITY
- LDC Section 25-9-91 TAP PERMIT REQUIRED

Historical Permit and Case Context

Nearby permits and cases are historical context only. They must not be treated as evidence that the proposed development requires professional verification. [Claim removed or revised: unsupported definitive statement; professional verification required.]

Summary: {'permit_count': 6, 'site_plan_count': 0, 'plan_review_count': 9}

Potential Constraints

- No major constraint labeled from available screening data; professional verification is still required.

Missing Information and Required Verification

- Verification required (zoning): Zoning lookup status is 'multiple_records'; official verification is required before design decisions.
- Verification required (historical_context): Nearby permits and cases are historical context only and must not be treated as approval precedent.
- Verification required (citations): One or more retrieved citations could not be verified against the approved regulatory index.
- Warning: Zoning could not be confirmed exactly and requires verification.
- Warning: 2 citation(s) failed verification and were excluded from supported regulatory citations.

Source Citations

1. LDC - Section 25-2-518 QUALIFYING DEVELOPMENT (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
2. LDC - Section 25-2-818 MOBILE RETAIL ESTABLISHMENTS (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
3. LDC - Section 25-2-91 PURPOSES OF COMMERCIAL DISTRICTS DESIGNATIONS (Chapter 25-2) | https://library.municode.com/tx/austin/codes/land_development_code
4. LDC - Section 25-7-94 REQUIREMENTS IN CENTRAL BUSINESS AREA (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
5. LDC - Section 25-7-92 ENCROACHMENT ON FLOODPLAIN PROHIBITED (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
6. LDC - Section 25-7-66 SUPPLEMENTAL REQUIREMENTS FOR DEVELOPMENT APPLICATIONS IN CERTAIN PLANNING AREAS (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
7. LDC - Section 25-7-93 GENERAL EXCEPTIONS (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
8. LDC - Section 25-7-61 CRITERIA FOR APPROVAL OF DEVELOPMENT APPLICATIONS (Chapter 25-7) | https://library.municode.com/tx/austin/codes/land_development_code
9. LDC - Section 25-6-472 PARKING FACILITY STANDARDS (Chapter 25-6) | https://library.municode.com/tx/austin/codes/land_development_code
10. TCM - Section 10.3.5.2 Parking (Vehicle) Measures (Section 10) | https://library.municode.com/tx/austin/codes/transportation_criteria_manual
11. TCM - Section 9.4.1 OFF-STREET GENERAL LOADING REQUIREMENTS (Section 9) |

https://library.municode.com/tx/austin/codes/transportation_criteria_manual

12. TCM - Section 9.3.2 GENERAL DESIGN CRITERIA (Section 9) |

https://library.municode.com/tx/austin/codes/transportation_criteria_manual

13. LDC - Section 25-6-1 DEFINITIONS (Chapter 25-6) |

https://library.municode.com/tx/austin/codes/land_development_code

14. LDC - Section 25-9-33 SERVICE EXTENSION APPLICATION (Chapter 25-9) |

https://library.municode.com/tx/austin/codes/land_development_code

15. LDC - Section 25-9-383 AVAILABILITY OF RECLAIMED WATER SERVICE (Chapter 25-9) |

https://library.municode.com/tx/austin/codes/land_development_code

16. LDC - Section 25-9-410 APPLICABILITY (Chapter 25-9) |

https://library.municode.com/tx/austin/codes/land_development_code

17. LDC - Section 25-9-31 APPLICABILITY (Chapter 25-9) |

https://library.municode.com/tx/austin/codes/land_development_code

18. LDC - Section 25-9-91 TAP PERMIT REQUIRED (Chapter 25-9) |

https://library.municode.com/tx/austin/codes/land_development_code

Preliminary-Review Disclaimer

This is a preliminary site-feasibility screening only. It is not an official zoning determination, code-compliance decision, development approval, or guarantee of utility service.